

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SERBIA

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## Complete Community Opposition How-To

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## INTRODUCTION & FRAMEWORK

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### Why This Matters

Across Serbia, communities keep discovering that the valley they farm, the river they drink from, the forest above their village, or the air over their town has been promised to someone else. A lithium mine. A copper expansion. A small hydropower plant on a mountain stream. A landfill or incinerator. A quarry. A highway interchange. A "special purpose area" spatial plan whose name few residents recognise until the survey crews arrive. Often the first real sign is a notice in a local newspaper, published in the format and language of officials and companies rather than of the people who stand to lose the most.

This guide is a practical manual for those people. It explains, in concrete steps, how the approval system for large projects is supposed to work in Serbia, where the genuine openings are, what documentation actually moves a decision, how to organise, and how to use the levers that have a proven record of working here. It does not promise victory. It promises a clear-eyed method that gives you the best possible chance while keeping you and your neighbours as safe as circumstances allow.

Serbia is different from the hardest places in the world, and you should understand that difference from the start, because it shapes everything that follows. This is not a country where nothing can be done. It is a candidate for membership of the European Union, bound by the Aarhus Convention, with an environmental-permitting system built on European models, courts that hear and sometimes decide environmental cases, and a recent history in which ordinary people, organising in their tens of thousands, forced the government to withdraw a law and suspend the largest foreign mining investment in the country's history. Serbia is a place where opposition has demonstrably changed outcomes. It is also a place where the executive is determined, where "strategic" projects enjoy powerful state and foreign backing, where high courts have been accused of ruling under political pressure, and where protesters have been arrested and campaigners smeared. The system is not tilted beyond use; it is contested and movable, and the whole of this guide is built around using the real levers it contains.

The projects that damage communities in Serbia are not random. They follow money, minerals, and geopolitics: lithium and boron in the west; copper and gold in the east; coal that the country still burns; small hydropower plants that dry out mountain rivers; sand and gravel dredging; landfills, incinerators, and industrial zones tied to foreign investment. What these share is that the people who approve them rarely bear their costs, and the people who bear their costs are rarely asked in time to matter.

## The Strategic Framework

The core of this guide is a simple idea: **a destructive project is not a single event but a chain of decisions, and a chain can be broken at its weakest link.** Your job is to find that link and concentrate your limited strength there, rather than spreading yourself thin against the whole project at once.

Every large project in Serbia depends on a sequence: someone proposes it; a spatial or urban plan makes room for it; the environmental authorities screen it and decide whether an impact assessment is required; a study is prepared and put to public insight; consent is granted; land is acquired or expropriated; permits and financing are arranged; construction begins. At each stage there are documents that must exist, deadlines that must be met, procedures that must be followed, and actors whose cooperation is required. Every one of those requirements is a potential point of failure for the project — and therefore a potential point of leverage for you.

In Serbia, the weak links are unusually varied, which is good news. Some are domestic and real: a spatial plan adopted without proper strategic assessment; an EIA study put to public insight in the wrong place or for too short a time; a screening decision that wrongly treats a major project as minor; an expropriation that ignores the law's own steps. Some are external and powerful: the European Union accession process and its Chapter 27 environmental scrutiny; the Aarhus Convention and its compliance mechanism; a foreign parent company listed on the London and Australian stock exchanges and sensitive to its investors and reputation; banks and insurers wary of a project the public overwhelmingly opposes. And some are political: in Serbia, unlike in many places, mass public mobilisation has directly forced the state to retreat. Your task is to map this chain for your specific project and identify which link is genuinely weakest given who is behind it, who is funding it, and how much public feeling it has stirred.

## Critical Caveat: Which Situation Are You In?

Throughout this guide you will find honest assessments of what is realistic, because a guide that promised you could stop any project by filing the right objection would be lying. Here is the honest frame for Serbia.

**When a project is private, mid-sized, and dependent on a permit that can be challenged, on financing, or on a foreign buyer, it is genuinely vulnerable.** A small hydropower plant that needs a water permit and a construction permit, a quarry that skipped its environmental assessment, a factory whose EIA consultation was a sham — these have exposed procedural flanks, and Serbia's courts and inspectorates do sometimes act. Documented illegality can cost such a project its permit, its timeline, or its financing.

**When a project is designated "strategic," driven by the state and a powerful foreign investor, and tied to EU raw-materials policy or major revenue, stopping it outright is harder — but far from impossible, and Serbia has proven it.** For these, the realistic goals are broader: force genuine assessment and public participation the state tried to skip; win delay that lets opposition build and markets shift; expose illegality that constrains the project or supports a future legal or accountability challenge; raise the reputational and financial cost to the foreign parent until the economics wobble; and, through sheer sustained public pressure, move the political calculation itself. In Serbia, that last lever is not theoretical. In 2022 a movement of ordinary citizens forced the government to abolish the spatial plan for exactly such a strategic project and to withdraw a national law. That victory was later contested in the courts, and the fight continues — but it happened, and it can happen again.

Knowing which situation you are in — before you act — is the single most important strategic judgment you will make. Much of this guide is designed to help you make it accurately, because treating a challengeable private permit as unwinnable surrenders an opening you had, while treating a state-backed strategic project as easily stopped can exhaust and expose a community before its real levers are in place.

## How to use this guide

Read the whole thing once before you do anything. Resist the urge to jump straight to writing objections or calling a rally. The sequence matters: you identify the target and its weak link, then you document, then you organise, then you escalate through legal, institutional, media, and external channels. Skipping to action before you understand your situation is the most common way communities waste their limited energy and miss short legal deadlines that never come back.

If you have very little time — because a public-insight period is already running or an expropriation notice has arrived — read the Introduction, the section on how the system works, and the Rapid-Fire Version, then come back for the detail. Two themes run through every page. First, **procedure is your friend**: in a European-style system, the government's own rules about assessment, consultation, and planning are the terrain on which an under-resourced community can beat a powerful developer, because a project that broke the rules can be stopped or delayed by insisting the rules be followed. Second, **breadth is your strength**: Serbia's most successful environmental campaigns won not in a single courtroom but by combining local documentation, legal challenges, national mobilisation, and international leverage at once, so that the

project faced cost on every side.

## HOW THE SYSTEM WORKS

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You cannot break a chain you cannot see. This section maps the bodies that decide, the journey a project actually takes, the rules that govern the outcome, the money that biases it, and the overseers who are supposed to watch — so you can find where your project is genuinely vulnerable.

### The Bodies That Decide — And What Each One Controls

**The Ministry of Environmental Protection.** This is the central environmental authority. It is the competent body for the environmental impact assessment of the largest and most sensitive projects: it decides whether an assessment is required (screening), sets the scope of the study (scoping), and grants or refuses consent to the completed study. For the biggest projects, this ministry is where the decisive environmental decisions are made. Understand it as a gate that exists in law and is, in practice, often opened for projects the government wants — which means its decisions are exactly the ones worth scrutinising for procedural error.

**Local and provincial authorities.** Most ordinary projects — quarries, smaller plants, many industrial facilities — are assessed not nationally but by the environmental department of the municipality or city, and in the north by the autonomous province of Vojvodina. This matters enormously: it means the official who signs the EIA decision for the project threatening your town often sits in your own municipal building, the documents are held locally, and the public-insight session happens in your community. Local decisions can also be appealed to a second-instance authority before going to court — a step national decisions skip.

**The planning authorities.** Before a large project can be built, space must be made for it in a plan. For major projects the instrument is a **Spatial Plan of the Special Purpose Area** (prostorni plan područja posebne namene), adopted by the government; for local development it is a spatial or urban plan adopted by the municipality. These plans are prepared under the Law on Planning and Construction, must undergo a Strategic Environmental Assessment, and must be put to public insight. The plan is frequently the true foundation of a controversial project — and, as Serbia's most famous case showed, the plan is something a movement can attack directly.

**The construction and permitting authorities.** A project needs a location/planning permit and a construction permit, issued through a unified electronic procedure. Sector regulators issue the specific licences a project needs — most importantly water permits (water-use and discharge consents) from the water authorities, and mining/exploration approvals from the mining and energy ministry. Each permit is a separate decision with its own conditions and its own route of challenge.

**The land administration and the expropriation process.** The Republic Geodetic Authority runs the cadastre — the official register of who owns and uses which parcel. When a project needs private land, the state uses the Law on Expropriation, which requires a declaration of public interest, valuation, and compensation, with defined steps and rights for owners. How land is taken, and whether every step was followed, is frequently the point where a project is most obviously vulnerable and where families have the clearest personal standing to object.

**The inspectorates.** Environmental, construction, water, and mining inspectors are supposed to enforce the rules — to stop unpermitted works, sanction breaches of consent conditions, and act on documented violations. They are under-resourced and often slow, but a well-evidenced complaint to the right inspectorate can trigger a site visit, an order to halt works, and an official record you can use later.

### How a Decision Is Actually Made — The Journey of a Project

Knowing the sequence tells you when to act, because each stage has a window and a document.

**Stage 1 — Planning.** For a major project, the government or municipality prepares a spatial or urban plan (for the largest, a Special Purpose Area plan). This undergoes a Strategic Environmental Assessment and an early public insight. This is the earliest and often most powerful moment to intervene: if there is no valid plan, or the plan's strategic assessment was defective, the whole project rests on sand.

**Stage 2 — EIA screening.** The developer applies, and the competent authority decides whether the project needs an environmental impact assessment. Serbia's rules list projects for which assessment is mandatory (List I) and projects for which it may be required (List II). A project wrongly kept off the mandatory track, or a List II project waved through without assessment, is a documented procedural failure and an early, high-value target.

**Stage 3 — Scoping.** If assessment is required, the authority sets the scope and content of the study — which impacts must be examined, which alternatives, which cumulative effects. A scope that omits the impacts you know are real (on water, on farmland, on health) is itself challengeable, and this is a stage where a focused submission can widen what the study must cover.

**Stage 4 — The study, public insight, and consent.** The developer prepares the EIA study; the authority announces it; and the study is put to **public insight, presentation, and public discussion**, during which anyone may submit written opinions. Serbia's newer environmental legislation lengthened this public-consultation window and requires an EIA decision before development consent is granted. This is the stage where the public has its clearest, on-the-record role — and the stage most often done badly: announced only in an obscure notice, held far from the affected village, the study running to thousands of untranslated technical pages, the objections waved aside. Every defect here is evidence, and the consent decision that follows is the decision you can take to court.

**Stage 5 — Land, permits, and construction.** With consent in hand, the developer secures land (by agreement or expropriation), obtains construction and sector permits, arranges financing, and begins. Each of these is a separate decision with its own legality to test, and financing in particular is where a foreign-backed project is exposed to pressures the domestic permits are not.

## The Rulebook — The Provisions That Decide the Outcome

You do not need to be a lawyer, but you must know the handful of instruments that govern your fight:

- **The Law on Environmental Impact Assessment** — the core procedure: screening, scoping, the study, public insight, and consent, together with the project lists that decide which track a project takes. This is the single most important instrument for procedural challenges to a specific project.
- **The Law on Strategic Environmental Assessment** — governs the environmental assessment of the *plans* (including Special Purpose Area spatial plans) that make projects possible. A plan adopted without a proper strategic assessment is vulnerable.
- **The Law on Planning and Construction** — governs spatial and urban plans, location and construction permits, and the public-insight requirements attached to them.
- **The Law on Environmental Protection** — the framework law establishing principles, the right to information and participation, liability, and the environmental inspection.
- **The Law on Expropriation** — the steps, valuation, and owner's rights when private land is taken for a declared public interest. Its misapplication is a frequent and winnable ground.
- **Sector laws** — on mining and geological exploration, waters, agricultural land, forests, and air and soil protection — each of which can supply a specific breach for a specific project.
- **The Aarhus Convention**, part of Serbian law since 2009 — guaranteeing the rights to environmental information, to participate in decisions, and to access justice. It is both a domestic standard the authorities must meet and a route to an international compliance body when they do not.

The pattern to hold in mind: the planning and EIA rules give you procedure, participation rights, and delay; the expropriation and sector rules are where specific, personal illegality often lies; and the Aarhus Convention and EU accession framework are where a captured domestic decision can be pursued beyond the reach of the officials who made it.

## Follow the Money — Why the System Often Leans Toward "Yes"

Understand the incentives and you understand why the gate is so often open. Large projects promise investment, jobs, and revenue, and the government stakes political credit on delivering them; "strategic" designations, foreign-investment deals, and raw-materials partnerships bind the state's prestige to the project's success. Officials who approve projects rarely bear their costs and are rewarded for attracting capital, not for protecting a valley. Sector ministries are proponents, not referees. On the largest projects a foreign parent brings the added weight of investor-state arbitration threats and geopolitical partners. This is not a system with a neutral referee waiting to be persuaded on the merits; its default on projects the state wants is approval. Your leverage therefore rarely comes from convincing the domestic decision-maker that the project is bad. It comes from raising the cost — legal, procedural, reputational, financial, and political — to the point where continuing is harder than retreating.

## The Overseers — Who Watches the Decision-Makers

In Serbia, some overseers function, some are compromised, and the strongest sit partly outside the government's control:

- **The Administrative Court**, which reviews the legality of final administrative decisions, including EIA consents and

permits — a real, if slow and inconsistent, route to have an unlawful decision annulled.

- **The Commissioner for Information of Public Importance**, an independent office that can order authorities to release documents they are withholding — the lever against the "trade secret" wall that hides contracts and studies.
- **The environmental and construction inspectorates**, which can halt unpermitted works when handed solid evidence.
- **The Aarhus Convention Compliance Committee**, an international body that reviews complaints that a state has breached the public's rights to information, participation, and justice.
- **The European Union accession process**, whose Chapter 27 (Environment) scrutiny and the reports of the European Commission give organised civil society a channel to raise systemic breaches with an audience the government cannot ignore — even as the EU's own raw-materials appetite complicates the picture.
- **The Energy Community Secretariat**, which monitors Serbia's transposition of European environmental rules and has formally found breaches.
- **A relatively free, if pressured, independent press and a strong network of environmental organisations and scientists**, whose documentation and expertise have repeatedly shaped public understanding and forced official responses.

These are the overseers your strategy should be built to reach. Much of the rest of this guide is about producing documentation strong enough to move them, and combining them so that a project the government wants faces cost from every direction at once.

## QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns from how Serbian and comparable campaigns tend to go, not a controlled study. The decisive variable is not in the table: **whether the project is an ordinary private one or a state-backed "strategic" one**. Against a challengeable private project the levers below work well; against a flagship strategic project, discount every figure and read Section 13 first — while remembering that in Serbia mass mobilisation has, uniquely, forced the state to retreat.

### Individual Step Success Rates

| Approach                                              | Success Rate | Timeline      | Cost         | What "Success" Means                                            |
|-------------------------------------------------------|--------------|---------------|--------------|-----------------------------------------------------------------|
| Documentation only                                    | 5–10%        | 1–3 months    | low          | Basis for every other step                                      |
| Objection during public insight                       | 25–45%       | during review | low          | On record; conditions or a redo                                 |
| Small-hydropower permit / inspectorate challenge      | 35–55%       | 3–18 months   | low–moderate | Works halted; permit reversed                                   |
| EIA / SEA procedural challenge (Administrative Court) | 25–45%       | 6–24 months   | moderate     | Consent annulled; process redone; delay                         |
| Expropriation procedural challenge                    | 30–50%       | 6–24 months   | low–moderate | Taking blocked or corrected; fair compensation                  |
| Aarhus / EU-accession (Chapter 27) complaint          | 20–40%       | 6–24 months   | low          | Breach found; scrutiny; leverage                                |
| Foreign-parent / investor & lender pressure           | 25–45%       | 3–24 months   | low          | Reputational cost; financing risk; delay                        |
| All steps combined (ordinary private project)         | 45–60%       | 12–36 months  | low–moderate | Stopped, redesigned, or delayed                                 |
| All steps combined (strategic project)                | 15–30%       | 12–48 months  | low–moderate | Honest assessment, delay, or — with mass mobilisation — retreat |

**Key insight:** all steps together beat any single one, and Serbia's real strengths are the **EU-style procedure, genuine Aarhus participation rights, functioning-if-imperfect courts**, and a **foreign parent exposed to investors and banks** — plus the distinctive Serbian fact that **mass, disciplined mobilisation has actually forced a strategic project's retreat**. Its constraints are a **captured executive on flagship projects** and **high courts that can rule under political influence**.

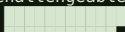
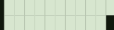
*A note on cost: objecting, documenting and complaining are inexpensive. The expenditure that changes outcomes is an*

environmental lawyer and, where the parent is foreign-listed, help preparing an investor or lender complaint — both often available through Serbia's experienced environmental-law organisations.

## Effectiveness Visualization

SUCCESS PROBABILITY (stopped, redesigned, assessed honestly, or delayed)

ORDINARY PRIVATE PROJECT -- challengeable permit, credible file, legal support:

|                             |                                                                                   |        |
|-----------------------------|-----------------------------------------------------------------------------------|--------|
| All steps combined:         |  | 45-60% |
| Small-hydropower challenge: |  | 35-55% |
| Expropriation challenge:    |  | 30-50% |
| Single step:                |  | 5-45%  |

STATE-BACKED "STRATEGIC" PROJECT -- executive committed, foreign investor:

|                            |                                                                                   |                   |
|----------------------------|-----------------------------------------------------------------------------------|-------------------|
| All steps combined:        |  | 15-30%            |
| Delay / honest assessment: |  | good and valuable |
| Mass mobilisation:         | (proven in Serbia to force a strategic retreat)                                   |                   |
| Single step:               |  | 5-20%             |

**How to read this honestly.** The arguments that move outcomes in Serbia are **procedural, rights-based, and reputational** — grounded in the law and the public's Aarhus rights, not in opposition to the state as such. The strongest: a **defective or skipped EIA/SEA**, a **botched public insight**, an **unlawful expropriation**, a **small-hydropower permit breach**, an **Aarhus or EU-accession breach**, and a **foreign parent's exposure to its investors and banks**. And Serbia's own history adds one more: a **broad, disciplined public movement**, which has forced the government to abolish a strategic project's spatial plan.

## Step Importance Ranking (When All Combined)

1. **Procedure and the courts** — the EIA/SEA challenge, the public insight, the Administrative Court, and the expropriation defence.
2. **Mass, disciplined public mobilisation** — uniquely powerful in Serbia, and proven to move even strategic projects.
3. **External leverage** — Aarhus compliance, EU accession Chapter 27, and the foreign parent's investors and lenders.
4. **Documentation** — the dated, sourced record that every other step depends on.
5. **Media** — national and international, which raises the cost and reaches the investors, used accurately.

## What Serbian Campaigns Actually Show

A few patterns recur. **Procedure bites**, because Serbia runs a European-style permitting system whose own rules a community can hold it to. **Small-hydropower fights are among the most winnable**, through inspectorate complaints and permit challenges over plants drying protected mountain rivers. **Mass mobilisation has genuinely worked** — the 2021-22 movement that forced the government to withdraw an expropriation law and abolish a flagship lithium project's spatial plan is the emblem, even as the fight continues in the courts. **External leverage reaches past domestic capture**, through Aarhus, EU accession, and a foreign parent's markets. **And the "strategic" question sets the ceiling** — an ordinary private project can be stopped or reshaped, while a flagship one is, realistically, delayed and forced into honest assessment unless mobilisation shifts the politics. The through-line: **use the procedure and the courts, build the broadest disciplined public movement you can, and reach the external levers beyond the capture.**

## STEP 1: TARGET IDENTIFICATION

Before you write a single objection, you must know exactly what you are fighting, who is behind it, and where in its chain of approvals it is weakest. Acting before you know these things wastes effort and misses deadlines. Spend your first days answering five questions.

### The Five Questions

**1. What exactly is the project, and where is it in the approval sequence?** Is there a spatial plan yet, or is one being prepared? Has the EIA been screened, scoped, studied, put to public insight, or consented? Have permits or expropriation begun? The project's stage tells you which window is open right now and which deadline is nearest. A project still at the planning or screening stage is far more vulnerable than one already under construction — but even a built project breaching its consent conditions can be challenged.

**2. Who is behind it — and who owns them?** Identify the developer company, its owners, and, crucially, any foreign parent. A domestic quarry with a single owner is a different fight from a subsidiary of a multinational listed on a foreign



stock exchange. The parent's identity determines whether reputational, investor, and lender pressure are available to you — often your strongest levers on a big project.

**3. Who is paying for it, and who is buying from it?** Is the project financed by a domestic bank, an international lender, or the parent company's own capital? Is it tied to a foreign buyer, an export market, or an EU raw-materials partnership? Money and markets carry rules and reputational exposure that domestic permits do not, and they are frequently the weak link on projects the state protects.

**4. Which decision-maker and which permit are genuinely challengeable?** Is the key decision the spatial plan (attack the strategic assessment and the planning process), the EIA consent (attack the screening, scoping, study, or public insight), a water or mining permit (attack the sector-specific breach), or the expropriation (attack the procedural steps)? Usually one link is weaker than the others. Find it.

**5. How much public feeling does it stir, and how exposed is it politically?** A project that threatens drinking water, farmland, health, or a beloved landscape can mobilise far beyond the immediate community — and in Serbia, public feeling has been a decisive lever. A project the government has staked prestige on is politically exposed in a different way: embarrassing, delaying, and out-mobilising it carries a cost the state feels.

## Reading the Answers

Work the five questions together and a picture forms. **A private, mid-sized project with a challengeable permit and a domestic owner** points you toward procedure, inspectorates, and the courts: document the illegality, complain, litigate, and force delay or reversal through the rules. **A foreign-owned project dependent on financing or an export buyer** points you additionally toward reputational and lender pressure: the parent's investors, the banks, the buyers, and the parent's home-market regulators become targets. **A state-backed strategic project** points you toward the broadest combination: procedure and litigation to force honest assessment and win delay; mass, disciplined mobilisation to raise the political cost; and international leverage — EU accession scrutiny, the Aarhus compliance mechanism, the foreign parent's exposure — to reach past the captured domestic decision.

## Naming Your Realistic Goal

Before you go further, write down, with your core group, what winning would actually mean for you. Be concrete and honest. Depending on your situation, a realistic goal might be: stopping the project outright; forcing a proper environmental assessment and genuine public participation; winning years of delay; shrinking the footprint or protecting the most important area, river, or water source; securing lawful process and fair compensation in an expropriation; or building the documented record that constrains the project later and supports a future legal or accountability challenge. A goal that fits your situation keeps your community focused and prevents the demoralisation that comes from measuring a partial but real victory against an all-or-nothing standard. You can raise your ambition as your strength grows — and in Serbia, strength has a way of growing faster than anyone expects.

## STEP 2: DOCUMENTATION

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Documentation is the foundation of everything that follows. In a European-style system, the argument that wins is rarely "this project is bad"; it is "this project broke this rule, and here is the proof." A community that can show — in dated, sourced, organised form — exactly what the project is, what the law required, and where the process failed, holds something no press release can match: a record that a court, an inspector, the Commissioner, the Aarhus committee, a bank, or a journalist can act on. A community that has only anger has nothing to hand any of them.

### The Mindset: Build a Record, Not a Grievance

Approach documentation as if you are assembling a file that a stranger — a judge, a foreign investor's compliance officer, a European Commission official — will one day read without knowing your village. Everything must be dated, attributed to a source, and stored so it cannot be lost. The goal is a record so clear and credible that its conclusions are hard to dismiss and easy to act on.

### What to Document

**The project itself.** Its exact location and boundaries; its scale and outputs; the company and its owners; the stage it has reached; and every official document you can obtain — the plan, the screening and scoping decisions, the EIA study, the consent, the permits, the expropriation acts. The official paper trail is the spine of your case.

**The procedure — and its failures.** This is the heart of a Serbian challenge. Was a Strategic Environmental Assessment done for the plan? Was the project correctly screened — should it have been on the mandatory assessment list? Was the public insight properly announced, in the right places, for the full period the law requires? Was the study genuinely made available and the presentation genuinely held? Were written objections answered? Was the expropriation's every step followed? Each gap between what the law required and what actually happened is a documented ground of challenge — capture it precisely: what the rule says, what happened, and the proof of the difference.

**The physical and environmental baseline.** Photograph and date the river, the fields, the forest, the air, the homes as they are now, with locations recorded. Note water sources, wells, springs, and drinking-water intakes; farmland and its use; protected areas, habitats, and cultural or heritage sites nearby. This baseline lets you show what stands to be lost and later prove what changed. Where you can, involve a sympathetic scientist — Serbia has many — to give your observations authority.

**The community and the impact.** Who lives here, who farms and fishes and draws water here, how many families the project touches, what it would take from them. Record customary and formal land use, and gather owners' documents. Human impact, concretely shown, moves audiences that technical argument alone does not reach.

**Every interaction with authorities and the company.** Keep a dated log of every notice, meeting, request, and response — who said what, when, and with what document to prove it. When you file an information request, keep the request and the reply (or the silence). This log becomes both your timeline and, when officials stonewall or mislead, evidence in itself.

## How to Document Safely and Credibly

Keep multiple copies in more than one place, including secure digital backups outside your immediate area. Record dates and sources for everything; an undated photograph or an unsourced claim is far weaker. Prefer official documents and named expert assessments over rumour. Be accurate and restrained: a file that overstates will be discredited on its weakest point, while a file that is careful and verifiable is hard to attack. Serbia is not a place where documenting a project is itself dangerous — but protecting the integrity and the backups of your record is still essential, because the file is the thing that outlasts any single meeting, official, or news cycle, and it is the asset every ally you will approach actually needs.

## WHAT TO GATHER, AND WHERE TO FIND IT

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This section turns the documentation task into a concrete list of sources. In Serbia many of these are public, online, or obtainable by a formal request — and the law is on your side when you ask. Work through them methodically.

### Official Registers and Portals

**The cadastre (Republic Geodetic Authority).** The official register of parcels, owners, and land use. Its public online access lets you establish who owns and uses the land a project needs — essential for expropriation fights and for mapping the footprint. Record parcel numbers; they anchor everything.

**The unified electronic construction-permit system.** Serbia issues location and construction permits through a central electronic procedure whose records are public. Use it to find whether permits exist, what they authorise, and when they were issued — and therefore whether works on the ground exceed what was approved.

**The business registers.** The Serbian Business Registers Agency holds company records — owners, directors, financial statements, and links between companies. Use it to identify the developer, trace its ownership up to any foreign parent, and see who really stands behind the project.

**The environmental authority's registers and notices.** EIA screening, scoping, study, and consent decisions, and the public-insight announcements, are issued and published by the competent authority — the Ministry of Environmental Protection for major projects, the municipal or provincial environmental department for others. Watch these notices closely: the public-insight window is short and is where your on-the-record objection goes. The Serbian Environmental Protection Agency (SEPA) publishes environmental monitoring data — air, water, pollutant registers — useful for baseline and for challenging a study that ignores known conditions.

### Documents You Request

**Environmental information under Aarhus and the Law on Environmental Protection.** You have a legal right to



environmental information held by public authorities. Request the full EIA study, the plan and its strategic assessment, monitoring data, permits, and consent conditions. If an authority refuses or ignores you, that refusal is itself actionable.

**Access to information of public importance.** Serbia's freedom-of-information law lets you request records from public bodies, and an independent **Commissioner for Information of Public Importance** can order disclosure when they are withheld. This is the tool against the "trade secret" wall used to hide contracts and studies: file the request, and if refused, complain to the Commissioner. Many important documents have reached the public in Serbia precisely this way.

**Local-assembly and planning records.** Municipal assembly decisions, the spatial and urban plans, the strategic-assessment reports, and the minutes of public insights are public. Obtain the plan that underlies your project and read how it was adopted.

## Independent Evidence

**Scientific and technical expertise.** Serbia has a strong community of academics, hydrologists, geologists, biologists, and doctors who have repeatedly given independent assessments in environmental fights — on water, tailings, air, and health. A named expert opinion that contradicts a developer's study is one of the most powerful documents you can hold. In Serbia's mining fights, independent studies by university scientists on water drawdown, tailings, and pollution have repeatedly been the evidence that shifted public opinion and armed legal challenges, precisely because they could not be waved away as mere local complaint. Universities, institutes, and professional associations are where to look.

**Environmental organisations with legal and technical capacity.** A number of Serbian NGOs specialise in environmental law, monitoring, and litigation — among them groups focused on renewable-energy and environmental regulation, on protecting rivers from small hydropower, and on Aarhus rights and access to justice. They can help you read a study, draft an objection, identify a breach, and sometimes litigate. The network built around the country's major mining fights is broad and experienced; connect with it early.

**Media archives and prior cases.** Serbia's independent outlets and specialist energy and environment portals have documented many projects and fights in detail. Their archives can give you the project's history, the company's record elsewhere, and the arguments and outcomes of similar cases — a shortcut to understanding your own.

## International Sources

For a foreign-owned or financed project, look outward. A foreign parent's stock-exchange filings, annual and sustainability reports, and investor disclosures reveal commitments and vulnerabilities. Banks' and development lenders' project databases show who is financing what and under which safeguard rules. International NGOs that track banks, mining, and human rights publish risk assessments — Serbia's largest mining fight has been the subject of exactly such investor-facing reports. The European Commission's accession documents and the Energy Community's findings record where Serbia's environmental compliance falls short. Each of these can supply a fact, a standard, or a pressure point that the domestic file cannot.

## Turning Sources into a Case

As you gather, sort everything against the chain of decisions from Section 2, so that each document attaches to the stage and the rule it concerns. By the end you should be able to point to a specific decision, name the rule that governed it, and show — with a dated, sourced document — where it failed. That is the raw material of every legal challenge, every complaint, every media story, and every approach to a bank or an international body that the rest of this guide describes.

# STEP 3: BUILDING LOCAL OPPOSITION

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Documentation gives you a case; organisation gives you power. In Serbia, organised public opposition is not a supporting act — it has been, on the largest fights, the decisive force. But mobilisation without structure burns out, and a movement that is careless exposes people to arrest and division. This section is about building opposition that is broad, durable, and disciplined.

## Start With a Solid Core

Begin with a small, committed, trusted group who will carry the work when enthusiasm dips. Agree on your realistic goal, divide the roles — documentation, legal, media, outreach, logistics — and establish how you make decisions and communicate securely. A clear, trusted core prevents the two things that most often break campaigns: paralysis, and

infiltration or rumour. Keep sensitive material (litigation strategy, contacts) within the core, while keeping the campaign's public face open and welcoming.

## Widen the Circle — Serbia's Great Strength

Serbia's environmental movement has shown that a local fight can become a national one, and that this is where its power lies. Build outward in concentric rings.

**The affected community first.** Map who loses what, then reach them directly and personally. Landowners facing expropriation, farmers, people whose water is threatened, parents worried about children's health — these are your foundation, and their concrete stake is your most persuasive argument.

**Neighbouring communities and the same-project network.** Others down the same river, along the same road, or facing the same company are natural allies. Serbia's mining and small-hydropower fights have been won partly by villages linking up so that a company faced not one objection but a coordinated front.

**The national movement.** Serbia has a dense field of environmental associations, river-defence networks, and citizens' movements, some of which have grown into national forces and even political parties. Connect early: they bring experience, legal and scientific capacity, media reach, and the ability to turn your local fight into a national cause. The country's largest campaigns succeeded precisely by fusing local resolve with national mobilisation. A single western-Serbian valley's fight against a lithium mine became, within months, a nationwide movement that blocked highways in Belgrade and drew in scientists, artists, farmers, and the diaspora — and that scale, not any one village's effort, is what forced the state to move.

**Experts, faith communities, professionals, and the diaspora.** Scientists lend authority; doctors make the health stakes undeniable; lawyers open the legal front; local clergy and respected figures broaden legitimacy; and Serbia's large diaspora has repeatedly amplified fights abroad and reached international audiences and investors. Each ring widens your reach and raises the project's cost.

## Choose Tactics That Fit Serbia

Serbia protects, on paper and largely in practice, the freedoms of assembly, association, and expression, and public demonstration is a normal and often effective part of environmental campaigning here — the country's roadblocks and marches have changed outcomes. That said, protest is not risk-free: activists have been arrested and criminally charged, campaigners have faced smears and pressure, and the same-day intensity that wins can also expose people. So choose your tactics deliberately.

The strongest campaigns combine channels rather than relying on one. **Procedural and legal action** — objections, information requests, complaints, litigation — is the disciplined backbone that creates deadlines the state must answer and records that outlast any rally. **Public mobilisation** — petitions, local meetings, marches, and, where warranted, the peaceful roadblocks that are part of Serbia's repertoire — raises the political cost and the visibility. **Documentation and media** carry the truth to the country and beyond. Sequence them so that legal filings, revelations, and public actions reinforce one another and keep the project under pressure on every side.

Whatever the mix, keep it disciplined and nonviolent, keep newcomers safe and informed of the risks, and frame your opposition as insisting that the law and the public's rights be respected — which is both accurate and, with courts, institutions, and international audiences, the most persuasive stance. And guard against burnout: rotate roles, mark small wins, and pace a campaign that may last years, because in Serbia's biggest fights, endurance has been as important as intensity.

## STEP 4: LEGAL CHALLENGES

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Legal and procedural action is the disciplined backbone of a Serbian campaign. It rarely wins alone, but it creates the deadlines, the official records, and the delays around which everything else is built — and in a European-style system, a project that broke the rules can be stopped or held up by insisting the rules be followed. This section explains the openings. It is not a substitute for a lawyer, and one of your early tasks is to find one; Serbia has environmental-law NGOs and practitioners who take exactly these cases.

### The Procedural Openings — Where Projects Break the Rules

**Screening errors.** If a project that should have undergone a mandatory environmental impact assessment was treated

as if it needed none, or a project that clearly warranted assessment was screened out, that is a fundamental procedural failure. The screening decision itself can be challenged.

**Scoping gaps.** If the authority set a scope that omits impacts the law and the facts require — on water, on farmland, on health, on protected areas, on cumulative effects with other projects — the scoping decision is challengeable, and a focused submission at this stage can force the study to widen.

**Defective public participation.** This is among the most common and most winnable grounds. If the public insight was not properly announced, was too short, was held far from the affected community, made the study effectively inaccessible, or ignored the written objections it received, the process breached both Serbian law and the Aarhus Convention. Document the defect precisely and it becomes a strong ground to annul the consent.

**Flaws in the study and the consent.** If the EIA study rests on false or missing data, ignores obvious impacts, or fails to consider reasonable alternatives, and the authority granted consent anyway, the consent decision is vulnerable. Independent expert evidence contradicting the study is powerful here.

**Planning and strategic-assessment failures.** If the spatial or urban plan underlying the project was adopted without a proper Strategic Environmental Assessment or its own required public insight, the plan — and therefore the project resting on it — is exposed. Serbia's largest fight turned on exactly this terrain: the special-purpose spatial plan.

**Permit and sector breaches.** Water permits, mining and exploration approvals, and construction permits each carry their own legal requirements. A water permit issued unlawfully, works exceeding a construction permit, or exploration without proper authorisation are specific, documentable breaches — and small-hydropower fights in particular have been won on precisely these grounds. Communities have used inspectorate complaints and court challenges to halt derivation plants that were drying protected mountain streams, and in several cases to have works stopped or permits reversed — a body of experience your lawyer and the river-defence networks can draw on directly.

**Expropriation defects.** If land was taken without a valid public-interest declaration, without the required valuation, or by skipping the law's procedural steps, affected owners have direct standing and a strong, personal challenge that can protect the footprint.

## Where the Challenges Go

**Second-instance authorities.** For decisions made by municipal or provincial bodies, an administrative appeal to the second-instance authority is often the first step — faster than court and sometimes effective. National decisions generally go straight to court.

**The Administrative Court.** This is the central venue for challenging the legality of final administrative decisions — EIA consents, permits, and the like. It can annul an unlawful decision and send it back. It is slow and its outcomes are inconsistent, but it is a real route, and the mere filing of a well-founded challenge can create delay and pressure.

**The Constitutional Court.** For constitutional questions — including challenges to laws and, in some circumstances, to acts affecting rights — the Constitutional Court is available. Its role in Serbia's mining fight has been double-edged: it is a genuine venue, but its decisions on politically charged projects have been criticised as influenced. Use it with clear eyes.

**The Commissioner for Information of Public Importance.** Not a court, but a fast and often effective route to force disclosure of withheld documents — an essential early move that arms every other challenge.

**The Aarhus Convention Compliance Committee.** When domestic remedies fail to protect the public's rights to information, participation, and justice, a communication to this international body can produce findings that embarrass the state, feed the EU accession process, and support your domestic case.

## Deadlines and Standing — Do Not Lose on a Technicality

Two practical warnings. First, **deadlines are short and unforgiving.** The window to submit objections during public insight, and the period to appeal or litigate a decision, are measured in days and weeks, not months. Diarise every deadline the moment you learn of it, and file on time even if imperfectly. Second, **standing matters.** Affected individuals — owners, residents, water users — generally have clear standing; environmental associations have standing to raise environmental-protection and Aarhus grounds. Structuring who brings which challenge, in what capacity, is something to settle early with your lawyer, because a strong case dismissed for lack of standing or a missed deadline is a loss you never needed to suffer.

## What Legal Action Realistically Achieves

Be clear-eyed. Litigation in Serbia can annul an unlawful decision, force a defective process to be redone properly, and — very often — buy substantial delay. On a challengeable private project, that can amount to stopping it. On a state-backed strategic project, courts alone rarely deliver outright victory, and high-court decisions can go against you on politically charged cases. But even then, litigation forces honest process, creates the delay in which mobilisation and external pressure work, and builds the documented record of illegality that constrains the project and supports every other front. Treat the legal channel as the disciplined engine of the campaign, not as a lottery ticket you buy and wait on.

## TURNING YOUR EVIDENCE INTO ARGUMENTS

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You have a file full of documents. Now you must turn it into arguments — because the same fact persuades a judge, a journalist, an inspector, and a foreign investor in different ways. Learning to translate your evidence for each audience multiplies its power.

### One Fact, Many Arguments

Take a single documented fact — say, that the public insight for the EIA study was announced only in an obscure notice and held far from the affected village, and that written objections went unanswered. That one fact becomes:

- **A legal argument:** the consent decision was reached in breach of the public-participation requirements of the Law on Environmental Impact Assessment and the Aarhus Convention, and is therefore unlawful and liable to annulment.
- **An Aarhus argument:** Serbia failed to guarantee the public's convention-protected right to participate, a matter the Compliance Committee reviews and the EU accession process weighs.
- **A political argument:** the authorities cut the public out of a decision about their own water and land — a story of contempt for citizens that resonates far beyond the village.
- **A media argument:** "They held the hearing about our river in a town none of us could reach, and never answered a single objection" — concrete, human, and damning.
- **An investor argument:** a project advancing on a consent obtained through a defective, legally challenged process carries regulatory, reputational, and delay risk that a prudent financier should weigh.

Same fact, five arguments, five audiences. Go through your strongest documented facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank.

### Match the Argument to the Audience

**Courts and inspectorates** want legality: which rule, which breach, which proof, which remedy. Keep it precise, sourced, and unemotional.

**Officials and second-instance authorities** want a defensible reason to act — or a clear risk in not acting. Show them the breach and the exposure (litigation, annulment, an Aarhus finding, EU scrutiny) that following the law avoids.

**The public and the media** want the human and moral stakes, made concrete: the water, the farmland, the health, the children, the broken promises. Lead with the person, then supply the fact that proves it.

**Investors, banks, and buyers** want risk: legal, reputational, financial, and timeline. Speak their language — breached procedure, overwhelming public opposition, litigation, delay, and the danger to their own standing — and show that the project is not the safe bet they were sold.

**International bodies — the Aarhus committee, the European Commission, the Energy Community** — want to see a clear breach of the standards they uphold, documented against the specific obligation. Frame your evidence against the exact convention right or directive requirement at issue.

### The Master Frame: "Follow Your Own Rules"

Across every audience, the strongest and safest frame in Serbia is the same: you are not against development in the abstract, and you are not merely against this project — you are insisting that the state and the company follow the law, respect the public's rights, and carry out the honest assessment and participation the rules require. This frame is accurate, it is hard to attack, it keeps the moral high ground, and it speaks equally to a judge, a journalist, an inspector, a foreign investor, and a European official. In a system that publicly claims European standards, holding it to those standards is both your best legal ground and your best political weapon.

## STEP 5: MEDIA STRATEGY

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Media turns a local objection into a cost the powerful must weigh. In Serbia, coverage has repeatedly transformed isolated village fights into national causes and international stories — and that reach is one of your strongest levers. But media is a tool to be used deliberately, in service of your goal, not a substitute for the legal and organising work beneath it.

### What Coverage Achieves

Coverage raises the political and reputational cost of a project; it pressures officials who dislike scrutiny; it reaches allies, experts, and lawyers you could never find alone; it warns investors and buyers that a project is contested; and it creates a public record that constrains what the authorities and the company can later claim. On Serbia's biggest fights, sustained national and international coverage has been inseparable from the pressure that forced retreats.

### Build the Story Around People and Proof

The most powerful Serbian environmental stories combine a human face with a documented fact. Abstract objection persuades no one; a farmer standing by the river her family has drunk from for generations, beside the document showing the hearing about that river was hidden, is unanswerable. Lead with the person and the place; supply the proof; keep it accurate. Prepare a few clear, repeatable messages — what the project is, what it would take, what rule was broken, what you are asking — and keep every spokesperson on them.

### Reach Every Layer

**Local and regional media** build the base and reach the affected community. **National independent outlets and specialist energy and environment portals** carry your fight to the country and to decision-makers; Serbia has strong ones, and they follow these stories closely. **International media and NGOs** matter enormously for a foreign-backed project, because a multinational parent and its investors feel coverage in London, Brussels, and beyond far more than a notice in a Serbian gazette; the diaspora and international environmental networks are your bridge. **Social media and your own channels** let you document in real time, mobilise quickly, and reach audiences directly — useful, but strongest when anchored to verified facts and the slower work of legal and community organising.

### Discipline and Safety

Be accurate always: one exaggeration handed to the other side can discredit an entire campaign, so verify before you publish and correct mistakes fast. Stay on message; repetition is what makes a message stick. Anticipate the counter-narrative — that opponents are against progress, jobs, or the national interest, or are foreign-funded — and pre-empt it by grounding everything in law, rights, water, health, and the public's own overwhelming opposition. Protect the people who speak: brief them on the smears and pressure that Serbian environmental campaigners have faced, share the spokesperson role so no single person carries all the exposure, and never let a photo opportunity pull participants into an action whose legal risk they did not choose with open eyes. Used with discipline, media is the amplifier that makes every other lever — legal, political, financial — hit harder.

## EMAILS & LETTERS

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Written communications are how you create records, trigger deadlines, and put institutions on notice. Every letter does double duty: it asks for something, and it documents that you asked — so that silence or refusal becomes evidence. Keep copies of everything you send and receive. Below are adaptable templates for the situations you will meet most often in Serbia. Adapt them to your facts, keep them factual and firm, and always frame your request as insisting the law be followed.

### Template A — Request for Environmental Information

**To:** the competent authority (Ministry of Environmental Protection, or municipal/provincial environmental department)  
**Subject:** Request for access to environmental information — [project name/location]

I am writing on behalf of [name/community/association] to request access to environmental information under the Law on Environmental Protection and the Aarhus Convention. In relation to [project name] at [location], please provide: the environmental impact assessment study and the screening and scoping decisions; the consent decision and its conditions;

the underlying spatial/urban plan and its strategic environmental assessment; and all environmental monitoring data held in connection with the project. Please provide these within the period set by law. If any document is withheld, please state the specific legal basis for the refusal.

## Template B — Freedom-of-Information Request (and Commissioner escalation)

**To:** the public body holding the records **Subject:** Request for information of public importance — [project name]

Under the Law on Free Access to Information of Public Importance, I request copies of [the specific documents — e.g., contracts, permits, correspondence, studies] concerning [project]. Please provide these within the statutory deadline. If you withhold any record, please cite the exact legal ground.

*(If refused or ignored, escalate:)* As no lawful response has been provided within the statutory period, I will lodge a complaint with the Commissioner for Information of Public Importance seeking an order for disclosure.

## Template C — Written Objection During Public Insight

**To:** the competent authority conducting the public insight **Subject:** Objection to the EIA study — [project name/location]

Within the public-insight period announced on [date], I submit the following objections to the environmental impact assessment study for [project]. **First**, the study fails to adequately assess [water/farmland/health/protected area/cumulative] impacts, in that [specific deficiency]. **Second**, [further substantive defect]. **Third**, the public-participation process was itself deficient, in that [e.g., the notice, location, or period did not meet the requirements of the Law on EIA and the Aarhus Convention]. For these reasons, consent should be refused and the identified deficiencies remedied. I request written notification of the decision and of how these objections were considered.

## Template D — Complaint to the Inspectorate

**To:** the environmental / construction / water inspectorate **Subject:** Request for inspection and enforcement — [project/location]

I report the following apparent breach at [location]: [describe — e.g., works without or exceeding a permit; construction begun without required consent; breach of consent conditions], evidenced by [dated photographs/documents attached]. I request an inspection, and that any unlawful works be halted and appropriate measures ordered. Please inform me in writing of the action taken.

## Template E — Administrative Appeal / Notice of Legal Challenge

**To:** the second-instance authority (for local decisions) or as the basis for court proceedings **Subject:** Appeal against decision [number/date] — [project]

I appeal against the decision [identify it], on the grounds that it was adopted in breach of [the relevant law — e.g., the public-participation requirements of the Law on EIA; the Strategic Environmental Assessment obligation for the underlying plan; the expropriation procedure]. The specific breaches are: [list, each with the rule and the proof]. I request that the decision be annulled and the matter remitted for a lawful procedure.

## Template F — Letter to the Foreign Parent Company / Its Investors

**To:** the parent company's board / sustainability office / major investors **Subject:** Legal, reputational, and social risk — [project] in Serbia

We write regarding [subsidiary]'s [project] in [location], Serbia. The project faces documented breaches of Serbian environmental and planning law and of the Aarhus Convention [summarise], is the subject of legal challenge, and is opposed by an overwhelming majority of the affected public and, in national polling, of the country. We ask the board to account for how this exposure is consistent with the company's stated environmental, social, and human-rights commitments, and to disclose the risks to investors. We are documenting these matters for regulators and the public in your home market.

## Template G — Submission to an International Body

**To:** the Aarhus Convention Compliance Committee / European Commission (Chapter 27) / Energy Community Secretariat



**Subject:** Breach of [convention right / EU environmental acquis] — [project], Serbia

We submit that, in relation to [project], the authorities of Serbia breached [the specific obligation — e.g., the Aarhus rights to information, participation, and access to justice; the requirements of the EIA/SEA framework]. The facts are [summarised, dated, sourced], and domestic remedies have [been exhausted / proved ineffective because...]. We request that this be examined and that Serbia be called to bring its conduct into compliance.

## Template H — Letter to Elected Representatives and the Municipality

**To:** local councillors / mayor / members of the National Assembly **Subject:** [Project] — request to protect residents and the law

As your constituents, we ask you to act on [project], which threatens [water/farmland/health/landscape] and has advanced through a process marked by [the documented defects]. We ask you to [specific request — raise it in the assembly, demand the documents, oppose the plan, insist on lawful assessment and genuine public participation]. An overwhelming majority of residents oppose this project; we ask you to represent them.

## Using the Templates Well

Send important letters so that receipt is provable, and log every one in your timeline. Keep them factual, specific, and calm; attach your evidence; and always ask for a written response by a date. The reply — or the silence — becomes part of your record, and in Serbia that record has repeatedly been the difference between a project that proceeded quietly and one that was dragged into the light and stopped.

## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

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Sometimes the notice is already published, the public-insight clock is running, or the survey crews have arrived, and you cannot read this whole guide first. This is the compressed version. Do these things, in this order.

- 1. Find out exactly where the project is in the approval chain, today.** Is a plan being adopted, is the EIA at screening, scoping, public insight, or consent, or has an expropriation notice arrived? This tells you which deadline is nearest. In Serbia the deadlines are short — days and weeks — so establish them first and diarise them.
- 2. File a written objection or information request now, even if imperfect.** If a public insight is open, submit a written objection before it closes — you can always supplement later, but you cannot reopen a missed window. Simultaneously, send a request for the EIA study, the plan, and the permits under the environmental-information and freedom-of-information laws. This preserves your rights and starts building your record.
- 3. Photograph and date the baseline.** Before anything changes, capture the river, the fields, the wells, the homes, with dates and locations. This evidence is impossible to recreate later.
- 4. Gather your core group and name your realistic goal.** Five committed neighbours who meet this week beat fifty who are merely angry. Decide together what winning means for you — stop it, force honest assessment, win delay, protect the water, secure lawful expropriation.
- 5. Identify the weak link and who is behind the project.** Is the challengeable point the plan, the EIA consent, a water or mining permit, or the expropriation? Who owns the developer, and is there a foreign parent, a lender, or a buyer to pressure? This tells you where to aim.
- 6. Reach out immediately to Serbia's environmental network.** Do not fight alone. The country has experienced environmental-law NGOs, river-defence and anti-mining networks, scientists, and lawyers who have run exactly these fights and can help you read a study, draft a challenge, and amplify your cause. This single step multiplies everything else.
- 7. Go public with people and proof.** Get your story — a human face and a documented fact — to local and national media, and use your own channels. In Serbia, public attention has repeatedly turned a village objection into a national force.
- 8. Get a lawyer onto the deadlines.** The moment you can, have someone competent confirm the appeal and litigation deadlines and structure who challenges what. A strong case lost to a missed deadline or a standing technicality is the avoidable tragedy of rushed campaigns.

Do these eight things and you will have preserved your legal position, started your record, built a core, found allies, and put the project under public light — the foundation everything else in this guide builds on. Then come back and read the rest.

## WHEN THE SYSTEM IS TILTED

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Serbia is not one of the world's most tilted systems — but on the projects the state most wants, the tilt is real, and you must understand it so you neither despair nor waste your strength in the wrong place.

### Where the Tilt Shows

On a "strategic" project backed by the state and a powerful foreign investor, several things lean against you at once. The executive is determined and has staked prestige on the project. Regulators and sector ministries act more as proponents than referees. High courts, which are genuine venues, have been accused of deciding politically charged cases under pressure — Serbia's largest mining fight saw a planning-permission annulment, won by public pressure, later overturned by the Constitutional Court in a decision many viewed as politically influenced. Contracts and studies are hidden behind "trade secret" labels. Public assets — the state broadcaster, official messaging — are marshalled for the project, and campaigners face smears, pressure, and sometimes arrest. And an added complication peculiar to Serbia's biggest fight: the European Union, usually a source of environmental leverage, has its own appetite for the country's critical minerals, blunting one lever even as it sharpens others.

### What Still Works — And It Is a Lot

The crucial thing to hold onto is that in Serbia, even against a tilted strategic project, the levers are unusually strong and have a proven record.

**Procedure still bites.** Because Serbia runs a European-style permitting system, a project that skipped an assessment, botched a public insight, or rests on a defective plan is genuinely vulnerable — and forcing honest process buys delay and builds the record. Even where the executive wants the project, the process gives you legitimate, repeatable points of challenge.

**Mass mobilisation has actually won.** This is Serbia's distinctive fact. Ordinary citizens, organised in their tens of thousands with roadblocks and marches, forced the government to withdraw a national law and abolish a strategic project's spatial plan. That victory was later contested — but it proves that in Serbia the political lever is not decorative. A broad, disciplined, sustained movement can move even the biggest projects.

**External leverage reaches past the capture.** A foreign parent listed on international exchanges is exposed to its investors, its banks, and its reputation in its home markets in ways the Serbian executive is not. The Aarhus compliance mechanism and the EU accession process give organised civil society channels to raise breaches with audiences the government cannot dismiss. Even the EU's raw-materials interest cuts both ways: strategic attention brings scrutiny as well as backing.

**Delay is powerful.** On a tilted project, outright and immediate victory is the least likely outcome — but delay is highly achievable, and delay lets opposition grow, markets and politics shift, and costs mount until the project's economics or the government's resolve weaken.

### The Honest Frame

So the honest frame for Serbia's tilted cases is neither despair nor false confidence. Outright, permanent victory against a determined state-and-foreign-investor project is hard, and you should not stake the community's morale on it as the only acceptable outcome. But delay, forced honest assessment, exposed illegality, reputational cost to the foreign parent, protection of the most important ground, and — through sustained mass pressure — genuine political retreat are all realistic, and Serbia has delivered them. Diagnose the tilt accurately, keep the legal and documentary discipline that a European-style system rewards, build the broadest and most durable public movement you can, and reach the external levers that lie beyond the capture. That combination, sustained over time, is what has moved even Serbia's most protected projects — and it is what can move yours.

## WHEN IT'S ACTUAL CORRUPTION — AND WHO IS

# CAPTURED

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Sometimes what you are facing is not merely a system that leans toward development but genuine capture — decisions bought, steered, or hidden for the benefit of the powerful. Recognising this matters, because captured decisions are both a deeper obstacle and, when documented, a distinct and powerful line of attack.

## Signs of Capture

Watch for the patterns that recur in Serbia's most contested projects. Contracts and studies concealed behind "trade secret" labels so the public cannot see what was agreed. Assessments and consultations rushed, waved through, or treated as formalities regardless of what they reveal. Laws amended precisely when a specific investor needs them — as when expropriation and referendum rules were changed in a way that would have eased a single flagship project. Public institutions and state media marshalled to promote the project and discredit its opponents. Regulators and courts producing outcomes that track political will rather than the evidence. Officials moving between government and the companies they were meant to oversee. Land changing hands, or being classified and rezoned, in ways that benefit connected interests. None of these alone proves corruption, but together they mark a decision that was captured rather than made on the merits.

## Why This Changes Your Strategy

When a project is genuinely captured, persuading the domestic decision-maker on the merits is close to futile — the decision was never about the merits. But capture has a weakness: it depends on concealment and on the appearance of legality. Documented capture is therefore its own weapon. It shifts the fight onto terrain where the captured domestic system has less control:

- **Transparency as attack.** Forcing hidden contracts and studies into the open — through information requests and the Commissioner — strips the project of the secrecy it relies on and often reveals the very illegality you need.
- **Independent oversight.** The anti-corruption and audit institutions, and independent prosecutors where they function, can be given a documented file; even where domestic action is uncertain, the record matters.
- **International accountability.** Captured environmental decisions are exactly what the Aarhus compliance mechanism and the EU accession process are designed to scrutinise, and what international investigative journalists and anti-corruption networks pursue. A foreign parent implicated in a captured process faces exposure under its home-market anti-bribery and disclosure rules.
- **Political cost.** In Serbia, documented corruption around an environmental project fuses with broader public anger about governance — and the country's environmental protests have repeatedly merged into wider anti-corruption movements, multiplying their force.

## Document It Carefully and Safely

If you believe a decision is captured, document it with special care and restraint. Distinguish always between what you can prove and what you suspect; allege only what your evidence supports; and preserve the concealment itself — the refusals, the "trade secret" labels, the missing records — because in a captured process the cover-up is often easier to prove than the underlying deal, and is damning in its own right. Build the file so that a prosecutor, an auditor, an international body, or an investigative journalist could act on it. Corruption thrives on secrecy and public resignation; careful documentation and sustained public light are what defeat both — and in Serbia, they have.

# INTEGRATION & TIMELINE

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The steps in this guide are not a menu to pick from; they are strands to weave together over time. This section shows how they combine into a single campaign, and roughly when each comes into play.

## How the Strands Reinforce Each Other

The power of a Serbian campaign comes from running its channels at once, so the project faces cost on every side.

**Documentation** feeds everything — the legal challenges, the media stories, the institutional complaints, the approaches to investors. **Legal and procedural action** creates deadlines, official records, and delay, and lends the whole campaign the legitimacy of law. **Public mobilisation** raises the political cost and, in Serbia uniquely, has forced the state itself to retreat. **Media** amplifies each development and reaches the allies and investors you need. **External leverage** — Aarhus,

the EU process, the foreign parent's investors and lenders — reaches past any domestic capture. A legal filing becomes a news story; the story reaches an investor; the investor's unease becomes political pressure; the pressure feeds the next filing. No single strand wins; woven together, they have moved even Serbia's largest projects.

## A Rough Timeline

**Early (first days and weeks).** Diagnose the project and its stage; identify the weak link and who is behind it. File any objection whose window is open and send your first information requests — deadlines wait for no one. Photograph the baseline. Form your core group and name your realistic goal. Reach out to Serbia's environmental network and begin finding a lawyer. This early phase disproportionately determines everything that follows, because missed deadlines and a lost baseline cannot be recovered.

**Building (weeks to months).** Deepen the documentation into a genuine file. Lodge appeals and litigation on the strongest procedural grounds. Widen the coalition — neighbouring communities, the national movement, experts, the diaspora. Take the story to local and national media. Begin the external approaches: the Commissioner for withheld documents, and, for a foreign-backed project, the parent's investors and the international networks. Pace yourself; this is a phase measured in months.

**Sustained (months to years).** Keep the legal, public, and external pressure alive together, adapting as the project responds. Escalate to international bodies where domestic remedies fail. Maintain the coalition through wins and setbacks, guarding against burnout with rotation, shared load, and marked progress. Serbia's biggest fights have run for years, and endurance has been as decisive as any single action.

**Throughout.** Reassess honestly and regularly. Is the situation responsive, mixed, or entrenched — and does your goal still fit it? If a lever is working, press it; if the picture changes — a new financier, an EU decision, a court ruling, a political shift — adapt your goal and tactics. Keep your documentation current and safe; it is the asset that outlasts every news cycle and every official. There is no shame in adjusting a goal to fit reality, and great strength in a campaign built to last.

## FINAL ASSESSMENT

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### The Honest Bottom Line

Serbia is a country where communities can, and do, stop and reshape destructive projects — and where they sometimes lose to a determined state. Both halves of that sentence are true, and holding both is the beginning of wisdom.

On a private, mid-sized project with a challengeable permit, a documented, well-lawyered, publicly-backed campaign has a genuine chance of stopping it outright, and an excellent chance of forcing honest assessment, winning delay, and protecting what matters most. On a state-backed "strategic" project, outright and immediate victory is hard, and high courts can go against you on politically charged cases. But even there the realistic goals — forced honest assessment, years of delay, exposed illegality, reputational and financial cost to a foreign parent, protection of the most important ground, and, through sustained mass pressure, genuine political retreat — are all achievable, and Serbia has achieved them. This is, after all, a country whose citizens once forced the government to withdraw a national law and abolish a flagship project's spatial plan through sheer disciplined mobilisation. That fight is not over, and its later reversals are a lesson in endurance, not futility.

### What Distinguishes the Campaigns That Win

The campaigns that achieve something in Serbia share a pattern. They diagnose their situation honestly and set a goal that fits it. They treat the government's own European-style rules as terrain to be fought on, documenting every procedural failure and insisting the law be followed. They build broad, disciplined, durable coalitions — local, national, expert, and international — and they combine legal, public, media, and external pressure so the project faces cost on every side. They protect their people, guard against burnout, and endure. And they use Serbia's distinctive assets: real participation rights under Aarhus, functioning-if-imperfect courts, a strong environmental movement, a public that overwhelmingly opposes reckless projects, and a proven history of mobilisation that has moved the state itself.

The campaigns that fail do the opposite. They rely on a single channel; they miss short deadlines or lose on standing; they mistake anger for organisation; they exhaust themselves in the wrong place; or they measure a real, partial victory against an all-or-nothing standard and give up before their levers can work.

### A Closing Word

If you are reading this because a project threatens your valley, your river, your farmland, your air, or your home, understand that you are not powerless and you are not alone. Serbia has one of the most active, experienced, and successful environmental movements in the region, and it has shown the country and the world that ordinary people, organised and determined, can force the powerful to retreat. The method is not mysterious: understand your situation, document with care, insist on the law, organise broadly and safely, reach outside wisely, protect your people, and endure. It does not guarantee victory. But in Serbia, more than in most places, it has repeatedly delivered real outcomes that protect real homes, real water, and real land — and it can do so again. Judge your campaign by those outcomes, keep your people safe and united, and do not surrender an opening you actually have.